

Jyoti W/O Parameshwar Bhustalimath vs Parameshwar S/O Panchakshari ... on 6 July, 2023

Author: B.M.Shyam Prasad

Bench: B.M.Shyam Prasad

-1-

NC: 2023:KHC-K:4988-DB

MFA No. 200240 of 2017

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 6TH DAY OF JULY, 2023

PRESENT

THE HON'BLE MR. JUSTICE B.M.SHYAM PRASAD

AND

THE HON'BLE MR. JUSTICE UMESH M ADIGA

MISCL. FIRST APPEAL NO.200240 OF 2017 (FC-DIV)

BETWEEN:

JYOTI W/O PARAMESHWAR BHUSTALIMATH

AGE: 32 YEARS, OCC: HOUSEHOLD WORK

R/O: UTNAL, TQ. AND DIST: VIJAYPUR-586 101

...APPELLANT

(BY SRI VINAYAK APTE, ADVOCATE)

AND:

1. PARAMESHWAR S/O PANCHAKSHARI
BHUSTALIMATH

SINCE DECEASED BY HIS LRS.

Digitally signed by
SOMANATH
PENTAPPA MITTE
Location: HIGH
COURT OF
KARNATAKA

1A. TARABAI W/O PANCHAKSHARI BHUSTALIMATH
AGE: 65 YEARS, OCC: HOUSEHOLD WORK
R/O: CHARANTIMATH OMKAR NILAYA GARDEN,
A-BLOCK, 2ND CROSS, DHARAWAD-580 005

...RESPONDENT

(R1(A) - TARABAI SERVED)

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY COURT ACT, PRAYING TO ALLOW THIS APPEAL AND SET ASIDE THE IMPUGNED JUDGEMENT AND DECREE DATED:26.08.2014 PASSED IN M.C.NO.203/2012 ON THE FILE

-2-

NC: 2023:KHC-K:4988-DB

MFA No. 200240 of 2017

OF JUDGE FAMILY COURT, VIJAYAPUR, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS APPEAL COMING ON FOR ADMISSION THIS DAY, B.M.SHYAM PRASAD J., DELIVERED THE FOLLOWING:

JUDGMENT

The appellant has filed this appeal calling in question the judgment and decree of divorce dated 26.08.2014 in M.C.No.203/2012 on the file of Family Court, Bijapur [for short, 'the Family Court']. The Family Court, by its impugned judgment dated 26.08.2014, has dissolved the appellant's marriage to Sri Parameshwar S/o Panchakshari Bhustalimat in allowing the petition for divorce in MC No. 203/2012 filed under the provisions of Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 [for short, 'the HM Act']. Further, the Family Court by the judgment dated 26.08.2014, has allowed the appellant's application in CrI.Misc.No.231/2012 under Section 125 of Cr.P.C granting to her maintenance in a sum of Rs.3,000/- per month.

2. Sri Parameshwar has died on 26.06.2015, and the present appeal is filed after his death on 09.02.2017.

NC: 2023:KHC-K:4988-DB The appellant has arrayed her mother-in-law [the respondent] as her husband's legal representative contending that she is entitled to pursue her grievance against the decree of divorce with the respondent on the other side. On 28.02.2022, this Court, has condoned the delay, and this Court has also permitted the appellant to prosecute the appeal as against the respondent permitting her to be brought on record as the legal representative of Sri. Parameshwar.

3. At this stage, we must refer to the decision of the Hon'ble Bombay High Court in Kamala Bai vs. Ramdas¹, a decision which is referred to in this Court's decision in Iravva vs. Shivappa Shiddalingappa Angadi² which is relied upon by Sri Vinayak Apte, the learned counsel for the appellant. The question of continuation of the appeal against a judgment of decree for divorce after the demise of the husband has come up for consideration before a learned Judge of the Hon'ble Bombay High Court, and referring to 1 AIR 1981 Bombay 187 2 ILR 1987 KAR 1955 NC: 2023:KHC-K:4988-DB the similar circumstances which had come up for consideration as piquant,

the learned Judge has ultimately concluded thus after referring to another decision by the Division Bench of the same Court:

"8. It may be conceded that the position is not free from doubt, but where this is so, equitable considerations must prevail and bearing in mind the nature of the conclusion; the far-reaching effect of the findings of the Court, both on personal status and property rights, it is desirable that the party aggrieved by the decree of the trial Court must have the opportunity to have the findings reversed and this opportunity must be assured irrespective of the death of the respondent."

This Court is in complete agreement with the proposition of law enunciated as above.

4. The appellant has also filed an application under Order XLI Rule 27 of CPC seeking leave to produce two registered documents as additional evidence, and these documents are a copy of the registered Sale Deed dated 02.09.2022 executed by the respondent transferring an extent of 4 acres 33 guntas in R.S.No.608/2018 of Maalki village, Vijayapura Taluk and District [the subject property] NC: 2023:KHC-K:4988-DB and the simultaneous Confirmation Deed, which is also registered on 02.09.2022.

5. The appellant and another [Smt. Bhagya] have executed this Confirmation Deed confirming the transaction under the Sale Deed dated 02.09.2022. In this deed, the appellant is described as Sri. Parameshwar's wife, and it is brought on record that Smt. Bhagya is the wife of Sri Parameshwar's brother, Sri Shambulinga @ Shambhu. The appellant, in this Confirmation Deed, has stated that she has affirmed the land transfer because she is paid a certain amount. As regards the reason for delay in producing these documents i.e., in the present proceedings, it is stated that these documents have come into existence during the present proceedings and would be necessary for complete adjudication.

6. The respondent, though served, has remained absent. Sri. Vinayak Apte is heard for final disposal, and he presents the following points for consideration:

NC: 2023:KHC-K:4988-DB a. Whether the appellant has established grounds as contemplated under Order 41 Rule 27 of CPC to receive the aforesaid documents as additional evidence, and if these documents could be received whether the same would be relevant for a decision in this appeal.

b. Whether the Family Court has overlooked any evidence in granting a decree of dissolution of marriage, and if any evidence is indeed overlooked by the Family Court, whether such evidence would justify a decision for dissolution of marriage.

7. The undisputed facts are that the appellant and Sri Parameshwar have married on 01.12.2001, and their marriage is solemnized has decided by the elders. In fact, they were closely related even before the marriage. The respondent is the appellant's grandmother from her paternal side. The appellant and Sri Parameshwar do not have any children, and they have last lived together in

Dharwad. If these can be discerned as admitted facts, the divergence and NC: 2023:KHC-K:4988-DB therefore, the reason for dispute, is because of the following contradictory assertions.

8. Sri Parameshwar, who has initiated the proceedings for dissolution of marriage with the filing the present petition under Section 13(1)(ia) and (ib) of the H.M. Act, has pleaded that the appellant deserted him leaving the matrimonial home in the month of December 2002. He and his family members have repeatedly called upon the appellant to return to the matrimonial home, and he has referred to the efforts made in this regard in the year 2003, on 05.03.2004 and in the year 2005. Sri Parameshwar, as regards cruelty, has stated that the appellant was very abusive and was ill-treating not only him but also his family members.

9. On the other hand, the appellant has contended that she lived happily with Sri Parameshwar, the respondent and Sri Parameshwar's brother's family for a year from the date of marriage. But thereafter, Sri Parameshwar, who was working as a driver, started harassing her demanding NC: 2023:KHC-K:4988-DB dowry. She suffered continuous harassment until she was finally thrown out of the matrimonial home on 15.12.2009 insisting that she could return only if she got a dowry of Rs.1,00,000/-. The appellant has referred to a conciliatory meeting held between the two families in the month of February 2012.

10. The Family Court, while answering questions such as whether Sri Parameshwar has made out any ground for grant of divorce and whether the appellant is entitled to maintenance, has opined that Sri Parameshwar is able to establish that the appellant has deserted him for over ten years and hence he is entitled to dissolution of marriage. The Family Court, in arriving at this conclusion, has considered the evidence of Sri Parameshwar, who is examined as PW -1 and Sri Sadakshari S. Hiremath, a retired Government employee, and a common relative of both the appellant and Sri Parameshwar. Sri Sadakshari Hiremath is the respondent's brother.

NC: 2023:KHC-K:4988-DB

11. The appellant, without detailing or elaborating the circumstances that she could rely upon to establish that she lived with Sri Parameshwar in the matrimonial home until the month of December 2009, has stated in her pleadings, and in her evidence, that notwithstanding the harassment for dowry (including physical harassment), she resided with Sri Parameshwar until she was forced out of the matrimonial home for reasons of dowry. In her evidence, she has produced Exs.R3 to R7. These are medical records issued by private Nursing Home at Dharwad and these relate to the period 2007. It is seen from these medical records that she has undergone medical consultation for infertility, and the consultant has advised discussion with husband [Sri Parameshwar]. Later she has also undergone ultrasound test. The appellant has not been cross-examined in this regard at all, and as such, this evidence remains uncontroverted.

12. The appellant's case that she was residing with Sri Parameshwar in the matrimonial home until the month

- 10 -

NC: 2023:KHC-K:4988-DB of December 2009 must necessarily be considered in the light of these evidences. These documents emphasize the appellant's case that she was in matrimonial home with Sri Parameshwar until the year 2009 while belying Sri Parameshwar's case that she deserted him way back in the year 2002. Sri Parameshwar has not detailed the appellant's conduct to opine that she was cruel in her conduct as he has only reiterated his pleadings in his evidence without furnishing details. This would also be another material circumstance that must be considered.

13. At this stage, there must be some advertence to the documents sought to be produced as additional evidence. After the demise of Sri Parameshwar, and as recently as in the month of September 2022, the appellant and respondent, joined by the wife of Sri Parameshwar's brother, have executed registered transactions dealing with property in which Sri Parameshwar undeniably had an interest. The appellant is described as Sri Parameshwar's wife, and the appellant's case is that she was encouraged to

- 11 -

NC: 2023:KHC-K:4988-DB join in executing the documents for the transaction upon payment of certain amounts. This material would again be significant as it underscores the appellant's case, as canvassed by Sri Vinayak Apte, that the appellant was estranged from Sri Parameshwar because of marital discord and otherwise she enjoyed a good relationship with the respondent and other family members.

14. The parties have produced additional documents during the pendency of these proceedings, and as such, these are produced before the Family Court. Though the appellant in filing the application under Order XLI Rule 27 of CPC does not refer to sub-rule (b) of Order XLI Rule 27(1), the application must necessarily be considered in the light of these provisions. It is settled that an appellate Court could permit additional documents, independent of the rigors under Order 41 Rule 27(1)(b) of CPC, it could opine that the additional documents would be necessary for completing a decision on merits. In the circumstances of this case, this Court is of the considered view that reasons are established to receive the aforesaid Sale Deed and Confirmation Deed as

- 12 -

NC: 2023:KHC-K:4988-DB additional evidence, and because the respondent has chosen not to participate in the proceedings and is a party to these transactions, these documents can be considered for a decision on merits.

15. This Court, given the consequences that would entail, and on re-appreciation of the material on record, bearing in mind the equitable consideration that must come into play, is of the considered view that the Family Court has overlooked material and uncontroverted evidence which belie Sri Parameshwar's case of desertion and underscore the appellant's case as against desertion. In the light of the afore, both the points for consideration are answered in favour of the appellant and the

impugned judgment and decree dated 26.08.2014 in M.C.No.203/2012 is interfered with by the following:

ORDER The appeal is allowed, and the Family Court's impugned judgment and decree dated 26.08.2014 insofar as it relates to the petition for divorce by Sri Parameshwar

- 13 -

NC: 2023:KHC-K:4988-DB under Section 13(1)(ia) and (ib) of the H.M. Act in M.C.No.203/2012 is set aside.

There shall be a decree drawn accordingly.

Sd/-

JUDGE Sd/-

JUDGE AG,SWK